

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2916

By: Pittman

AS INTRODUCED

An Act relating to schools; describing the problem of unaddressed trauma in children; providing program purpose; providing for implementation and operation of a Handle With Care Oklahoma program; providing for program coordination between certain public agencies and community coalitions; enabling law enforcement to notify program; listing applicable traumatic events for notification; requiring administration of a hotline, email, or other method to provide notification; prescribing information to be included in notification; prohibiting inclusion of certain information; directing notification to designated representatives; including specified statement in notification; authorizing development of local multi-disciplinary teams; providing for team membership; requiring Oklahoma State Department of Education to provide model protocol and training; specifying information to be included in training; authorizing rule promulgation; providing exception for notification that could compromise an ongoing investigation; requiring program to apply for funding sources; directing program to submit annual report to certain elected officials; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

1 A. The Problem.

2 Research shows that unaddressed trauma can undermine children's
3 ability to learn, form relationships, and function appropriately in
4 the classroom. In the past, calling the Oklahoma Department of
5 Human Services statewide centralized hotline to make a mandated
6 child welfare report was one of the only tools in the first
7 responder's toolbox, but most children and teens do not meet the
8 criteria for a child welfare report. Consequently, many children
9 and teens are never identified, nor do they receive needed services,
10 and they linger in traumatic situations without adequate support.
11 These students have an increased risk for negative outcomes such as
12 poor academic performance, truancy, dropping out of school, and
13 delinquency.

14 B. The Handle With Care Oklahoma Program Purpose.

15 Handle With Care (HWC) Oklahoma is a program designed to enhance
16 existing cross-agency communication and partnership between local
17 law enforcement, community mental health services and supports, and
18 schools regarding children's exposure to traumatic events. The
19 "Handle With Care" approach enables first responders to start
20 building trust and positive connections with children and teens they
21 encounter at a traumatic scene and through an HWC notification,
22 local schools and mental health providers can provide trauma-
23 sensitive support immediately as needed. HWC Oklahoma is aimed at
24 ensuring that children who are exposed to crime, violence, and abuse

1 receive appropriate interventions so they can succeed in school to
2 the best of their ability. Children must feel safe in order to
3 learn.

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1210.164 of Title 70, unless
6 there is created a duplication in numbering, reads as follows:

7 A. Subject to the availability of funding pursuant to
8 subsection K of this section, the Oklahoma State Department of
9 Education shall implement and operate a Handle With Care (HWC)
10 Oklahoma program. HWC Oklahoma program efforts shall enhance
11 existing partnerships and collaborations with key partners such as,
12 but not limited to, state and local first responder agencies, school
13 districts, community coalitions, the State Department of Education,
14 the Department of Human Services, and the State Department of
15 Health. The HWC Oklahoma program shall enhance planning, training,
16 implementation, and sustainability in all counties in the state.
17 The program shall provide opportunities for local HWC programs to
18 receive support from the state as needed.

19 B. The HWC Oklahoma program shall enable a law enforcement
20 officer or employee of a law enforcement agency to notify the
21 program when a child, who may attend a public school or childcare
22 agency in the state, is exposed to a traumatic event, is at the
23 scene with a first responder, or another event occurs that may
24

1 affect his or her ability to succeed at school including, but not
2 limited to:

- 3 1. Domestic violence in the presence of the child;
- 4 2. Death of a member of the family or household of the child;
- 5 3. Arrest of a parent or guardian of the child affecting the
6 welfare of the child;
- 7 4. Search warrant is served in the residence of the child;
- 8 5. Drug or alcohol overdose of a child's family member;
- 9 6. Violence or mass shootings in the neighborhood where the
10 child resides;
- 11 7. Forced displacement from the residence;
- 12 8. House fire;
- 13 9. Child maltreatment; or
- 14 10. Child is present at a first responder encounter.

15 C. No later than November 1, 2027, the HWC Oklahoma program
16 shall coordinate with local communities and key partners to
17 administer a telephone hotline, email, or other appropriate method
18 to allow a law enforcement officer or first responder agency to
19 provide the notification described in subsection B of this section.

20 D. Information submitted to the HWC Oklahoma program in the
21 notification shall comply with the Oklahoma State Bureau of
22 Investigation's dissemination laws and Oklahoma Victim's Bill of
23 Rights. It shall only include, to the extent that it is available:

- 24 1. The first, middle, and last name of the child;

1 2. The grade and school or childcare agency where the child is
2 enrolled; and

3 3. The date of birth and age of the child.

4 The HWC notification shall not include any details about the
5 traumatic event unless there is an imminent threat to the safety of
6 the child or school safety.

7 E. Upon receiving notification as provided in subsection D of
8 this section, HWC Oklahoma shall determine if the child attends a
9 public school or childcare agency in this state. If the child
10 attends a public school or childcare agency in the state, HWC
11 Oklahoma shall contact the local HWC multi-disciplinary team (MDT)
12 created in subsection F of this section, which shall notify
13 designated representatives where the child attends. The notice
14 shall include that "the child referenced has been exposed to a
15 traumatic event in the last twenty-four (24) hours and could exhibit
16 academic, emotional, and behavioral problems because of exposure to
17 a traumatic event. Please handle the child with care."

18 F. In coordination with HWC Oklahoma and the Oklahoma State
19 Department of Education, each school district board of education,
20 city, town, or municipal governing body, county commission, or other
21 political subdivision may develop a local HWC multi-disciplinary
22 team (MDT) for the political subdivision. The HWC MDT may meet as
23 frequently as needed and determined by the team lead. The team lead
24 for the HWC MDT shall be selected by members of the team and shall

1 have received trauma-informed training from the State Department of
2 Health, Department of Mental Health and Substance Abuse Services, or
3 other recognized trauma-informed training provider. The HWC MDT
4 members shall include, but not be limited to:

- 5 1. Employees of the local school districts;
- 6 2. Community advocates or clergy;
- 7 3. Youth services professionals; and
- 8 4. Members of local law enforcement.

9 G. 1. The Oklahoma State Department of Education, in
10 coordination with community coalitions and partner state and local
11 first responder agencies, shall provide model protocol and training
12 for the HWC Oklahoma program to first responder agencies and their
13 employees who may respond to a traumatic event involving a child.

14 2. The Oklahoma State Department of Education, in coordination
15 with community coalitions, shall include model protocol and training
16 for the HWC Oklahoma program in existing efforts which promote
17 universal trauma-informed practices in school settings.

18 H. The training required in subsection G of this section shall
19 include, at a minimum:

- 20 1. The criteria for sending an HWC notice;
- 21 2. The procedure for notifying the HWC program when a child who
22 may attend a public school or childcare agency is exposed to an
23 event listed in subsection B of this section that may affect his or
24

1 her ability to succeed at school and the information to include in
2 the notification;

3 3. Proper response to a notification received from the program,
4 including, without limitation, the manner in which to respond to a
5 notification through early interventions; and

6 4. Collaboration with teachers and other members of the staff
7 of a school, students, family members of students, multi-
8 disciplinary teams, other persons, and behavioral, social, and
9 health providers, as appropriate, to reduce the negative impact of
10 the traumatic event on the affected student, appropriate
11 interventions that may be available to assist the student, and the
12 overall well-being of the student. Community coalitions shall be
13 engaged to increase coordination of community services.

14 I. The Oklahoma State Department of Education may promulgate
15 rules to implement the provisions of this section with feedback from
16 local first responder agencies, schools, and community coalitions.

17 J. Nothing in this section shall be construed to require a law
18 enforcement officer or employee of a law enforcement agency to
19 provide notification pursuant to this section if the disclosure of
20 information may compromise an ongoing investigation.

21 K. In addition to any funds appropriated by the Legislature,
22 the HWC Oklahoma program shall apply for federal, state, local, and
23 private funds to support the HWC Oklahoma program.

1 L. The Oklahoma State Department of Education shall submit an
2 annual report of the HWC Oklahoma program's progress and outcomes,
3 including, but not limited to, the number of sent notices, and
4 impact on students and communities to the Speaker of the Oklahoma
5 House of Representatives, President Pro Tempore of the Oklahoma
6 State Senate, and the Governor.

7 SECTION 3. This act shall become effective November 1, 2025.

8
9 60-1-11308 CMA 12/28/24